

SIMPLIFIED ACQUISITION PROCEDURES (SAP)

Determination Memorandum for Sole Source Acquisitions Over \$10,000 but not Exceeding \$250,000

SOLICITATIONS MAY BE LIMITED TO ONE SOURCE ONLY IF THE CONTRACTING OFFICER DETERMINES THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE. WHEN THE CUSTOMER DESCRIBES AN ITEM OR SERVICE, WHICH LIMITS THE AVAILABILITY TO ONE SOURCE, THE DETERMINATION MUST EXPLAIN WHY THE ITEM OR SERVICE PROVIDER IS THE ONLY ONE THAT WILL MEET THE GOVERNMENT'S REQUIREMENT. STATEMENTS SUCH AS "ONLY KNOWN SOURCE" OR "ONLY SOURCE WHICH CAN MEET THE REQUIRED DELIVERY DATE" ARE INADEQUATE TO SUPPORT A SOLE SOURCE PURCHASE. THIS FORM MAY BE USED IN LIEU OF THE DETERMINATION DESCRIBED IN FAR 13.106. THE CUSTOMER SHALL PROVIDE THE FOLLOWING INFORMATION:

1. PURCHASE REQUEST OR REQUISITION NUMBER:

2. PROJECT/TASK NUMBER:

3. ESTIMATED AMOUNT:

[REDACTED]

4. BRIEF DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED AND THE INTENDED USE:

This contract is for preventive maintenance and emergency repair services on a Tescan Vega-3 XMU scanning electron microscope (SEM). The vendor is to perform a yearly preventive maintenance service in compliance with OEM technical specifications using factory trained service engineers/technicians. The vendor will also provide timely emergency repair services on the SEM when it fails. These services shall include all travel costs, labor costs, repair equipment, replacement parts, and some consumable items. The contract includes a Base Year plus two (2) Option Years.

5. UNIQUE CHARACTERISTICS THAT LIMIT AVAILABILITY TO ONLY ONE SOURCE, WITH THE REASON NO OTHER SUPPLIES OR SERVICES CAN BE USED:

Market research has determined that the original equipment manufacturer (OEM), Tescan USA Inc., is the only known source that can provide the proper maintenance and repair services for this equipment. The Tescan Vega-3 XMU SEM is a highly complex precision instrument that uses proprietary hardware and software to operate. Proper equipment support and repair requires factory trained/certified service engineers/techs that have full equipment knowledge and a history of successfully repairing Tescan equipment. This OEM training and experience is needed to quickly and properly conduct repairs in the fastest time possible to avoid lengthy equipment downtime that can result in product delivery delays that negatively impact our service to the fleet. The OEM is the only known source with the necessary certified replacement parts immediately available for any and all repairs.

6. EXPLAIN WHY AN ADEQUATE PURCHASE DESCRIPTION OR OTHER INFORMATION SUITABLE TO SOLICIT MORE THEN ONE SOURCE HAS NOT BEEN DEVELOPED:

No other vendor is willing or capable of maintaining and repairing a Tescan SEM due to the proprietary nature of the hardware and software on this equipment. Also, other vendors do not have access to the OEM certified replacement parts needed to properly maintain and repair this equipment.

7. PROVIDE A STATEMENT OF ACTIONS, IF ANY, THE GOVERNMENT MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE FUTURE ACQUISITIONS ARE REQUIRED:

None

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]